

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
CHRISTOPHER CANTY,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, and P.O. CHRISTOPHER FRANCIS,

Defendants,

-----X
To the above-named Defendants:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: Brooklyn, New York
April 21, 2023

Adam Hill, Esq. of
ROSS & HILL, ESQS.
Attorneys for Plaintiff
45 Broadway, Ste. 1110
New York, NY 10006
718-855-2324

Notice: The nature of this action: negligence; personal injuries; assault; battery; excessive force; unlawful detention; false arrest; false imprisonment; violation of civil rights;

The relief sought is monetary damages: compensatory damages and exemplary damages.

Upon your failure to appear, judgment will be taken against you by default in a sum which exceeds the jurisdiction of any lower court, together with interest from June 8, 2022 and the costs of this action.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No.:
CHRISTOPHER CANTY,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, and P.O. CHRISTOPHER FRANCIS,

Defendants,

-----X

1. At all times hereinafter mentioned, plaintiff Christopher Canty was and still is a resident of the County of Kings, City and State of New York.
2. At all times hereinafter mentioned, defendant The City of New York was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, defendant New York Police Department is an agency acting on behalf of The City of New York and engaged by The City of New York to perform police duties and to protect the health, welfare property and safety of the residents of The City of New York.
4. At all times hereinafter mentioned defendant, Police Officer Christopher Francis, badge number 10068, of Police Service Area 3, was a police officer employed by the New York City Police Department.
5. At all times hereinafter mentioned defendant, Police Officer Christopher Francis was acting within the scope of his employment as a police officer.
6. At all times hereinafter mentioned defendant The City of New York, its agents,

servants and employees operated, maintained and controlled the Police Department including all the police officers thereof.

7. That on or about August 2, 2022, plaintiff's Notice of Claim was made and served upon the defendant, said service occurring within 90 days of the incident giving rise to this law suit.

8. That more than thirty (30) days have elapsed since the service of said Notice and adjustment or payment of plaintiff's claim has been neglected or refused.

9. That this action is being commenced within one (1) year and ninety (90) days after the happening of the events upon which the claim is based.

10. That on June 8, 2022 at approximately 6:00 pm, near 5 Fleet Walk, Brooklyn, NY and more specifically within the common area of the Ingersoll complex, police officers including P.O. Christopher Francis, without reasonable or probable cause, assaulted and battered plaintiff.

11. That police officers used unnecessary and excessive force.

12. That plaintiff sustained severe personal injuries as a result of police officers, including P.O. Christopher Francis tasing plaintiff.

13. That the incident was a result of the negligence of the defendants, its agents, servants and/or employees, with no negligence on the part of the plaintiff contributing thereto.

14. The incident resulted from the intentional, wanton, wrongful conduct of the police officers, including P.O. Christopher Francis.

15. As a result of the foregoing, plaintiff sustained compensatory damages and exemplary damages in an amount which exceeds the jurisdiction of any lower court.

AS AND FOR A SECOND CAUSE OF ACTION

16. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in

paragraphs 1 - 15 hereof with the same force and effect as though fully set forth herein at length.

17. After assaulting and battering plaintiff, police officers unlawfully detained, falsely arrested, and falsely imprisoned plaintiff until June 10, 2022 at approximately 3:00 am.

18. The unlawful detainment, unlawful arrest and unlawful imprisonment of plaintiff were without any probable cause or justification.

19. The detainment, arrest and imprisonment caused plaintiff pain, humiliation, personal injuries and suffering.

20. As a result of the foregoing, plaintiff sustained compensatory and exemplary damages in an amount which exceeds the jurisdiction of any lower court.

WHEREFORE, plaintiffs demand judgment against the defendants on all causes of action in amounts that exceed the jurisdiction of any lower court, with interest, costs and disbursements of the action.

Dated: New York, New York
April 21, 2023

Yours, etc.,



Adam Hill, Esq. of
ROSS & HILL, ESQS.
Attorneys for Plaintiff
45 Broadway, Ste. 1110
New York, NY 10006
718-855-2324

STATE OF NEW YORK, COUNTY OF NEW YORK) s.s.:

I, the undersigned, an attorney duly admitted to practice law in the Courts of this State, state that I am a an Associate in the firm of Ross and Hill, Esqs., attorneys of record for plaintiff(s) in this action; I have read the foregoing **COMPLAINT** and know the contents thereof; the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief and, as to those matters, I believe it to be true.

The reason this verification is made by me and not by the plaintiff is that plaintiff resides outside the County in which your affirmant maintains his office.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows: consultation with plaintiff(s), investigative reports, memoranda and other data in the file concerning the subject matter of the within litigation.

I affirm the foregoing statements are true, under the penalty of perjury.

Dated: Brooklyn, New York
April 21, 2023

A handwritten signature in black ink, appearing to read "Adam Hill", written over a horizontal line.

Adam Hill
For the Firm
Ross & Hill